

# Pre-Tenancy Compliance Checklist

Wales

24 Plasturton Avenue, Cardiff, CF11 9HL

## FILE-USE NOTE

Use this checklist as the landlord's setup record before move-in. Tick each item when the evidence is complete, note the completion date, and keep the finished checklist with the agreement, handover records, and compliance documents for the tenancy.

It is a practical file tool, not the agreement itself. If a requirement is unusual, disputed, or unclear, verify the point before relying on the file as complete.

## 1. Rent Smart Wales Registration (Mandatory)

|                          |                                                                                                                                                                                      |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Landlord registered with Rent Smart Wales</b><br>All landlords letting property in Wales must register with Rent Smart Wales. Self-managing landlords must also obtain a licence. |
| <input type="checkbox"/> | <b>Agent licensed (if using letting agent)</b><br>If you use a letting agent, they must hold a valid Rent Smart Wales licence.                                                       |

*Housing (Wales) Act 2014*

## 2. Deposit Protection (Mandatory)

|                          |                                                                                                                                                            |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Deposit protected within 30 days</b><br>Security deposits must be protected in an authorised scheme within 30 days and Prescribed Information provided. |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|

*Renting Homes (Wales) Act 2016, Part 4*

### 3. Written Statement (Mandatory)

|                          |                                                                                                                                                                                             |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Written statement of occupation contract provided</b><br>The landlord must provide the contract-holder with a written statement of the occupation contract within 14 days of occupation. |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

*Renting Homes (Wales) Act 2016, s.31*

### 4. Fitness for Human Habitation

|                          |                                                                                                                                                                   |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Property fit for human habitation</b><br>The dwelling must be fit for human habitation at the start and throughout the occupation. This is a fundamental term. |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|

*Renting Homes (Wales) Act 2016, s.91*

### 5. Gas Safety

|                          |                                                                                                                                                |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Valid Gas Safety Certificate (CP12)</b><br>Annual gas safety check by Gas Safe registered engineer. Certificate provided before occupation. |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|

*Gas Safety (Installation and Use) Regulations 1998*

### 6. Energy Performance Certificate (EPC)

|                          |                                                                                                                                          |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Valid EPC with minimum E rating provided</b><br>Property must have EPC rating of E or above. Certificate provided to contract-holder. |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------|

*Energy Performance of Buildings (England and Wales) Regulations 2012*

### 7. Electrical Safety (EICR)

|                          |                                                                                                                                 |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Satisfactory EICR obtained</b><br>Electrical installations must be inspected every 5 years and be in satisfactory condition. |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------|

*Renting Homes (Fitness for Human Habitation) (Wales) Regulations 2022*

### 8. Smoke and Carbon Monoxide Alarms

|                          |                                                                                                              |
|--------------------------|--------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Working smoke alarms installed</b><br>Smoke alarms on each storey. Carbon monoxide alarms where required. |
|--------------------------|--------------------------------------------------------------------------------------------------------------|

*Renting Homes (Wales) Act 2016*

## Summary Checklist

| Requirement                      | Status                                                    | Date Completed |
|----------------------------------|-----------------------------------------------------------|----------------|
| Rent Smart Wales registration    | <input type="checkbox"/> Yes <input type="checkbox"/> N/A | _____          |
| Deposit protected                | <input type="checkbox"/> Yes <input type="checkbox"/> N/A | _____          |
| Deposit info provided            | <input type="checkbox"/> Yes <input type="checkbox"/> N/A | _____          |
| Gas Safety Certificate provided  | <input type="checkbox"/> Yes <input type="checkbox"/> N/A | _____          |
| EPC provided (rating: ____)      | <input type="checkbox"/> Yes                              | _____          |
| EICR provided                    | <input type="checkbox"/> Yes                              | _____          |
| Written Statement provided       | <input type="checkbox"/> Yes                              | _____          |
| Smoke alarms tested              | <input type="checkbox"/> Yes                              | _____          |
| CO alarms tested (if applicable) | <input type="checkbox"/> Yes <input type="checkbox"/> N/A | _____          |
| HMO licence (if applicable)      | <input type="checkbox"/> Yes <input type="checkbox"/> N/A | _____          |

**Final check:** The tenancy file should only be treated as ready when the completed checklist, the supporting evidence, and the signed agreement all match each other.